

DISTRICT COURT, SAN MIGUEL COUNTY, STATE
OF COLORADO

305 W. Colorado Ave.
Telluride, Colorado 81435

Plaintiff,

TSG SKI AND GOLF, LLC, a Colorado Limited
Liability Corporation,

v.

Defendants,

JULIE MEEHAN FEE, an individual;
MARTINIQUE PROHASKA, an individual; and
PAUL WISOR, an individual.

Attorneys for Defendants Wisor and Prohaska

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Div.: 5

**DEFENDANTS PROHASKA AND WISOR’S MOTION TO DISMISS
FIRST AMENDED COMPLAINT PURSUANT TO C.R.C.P. 12(b)(5)**

Defendants, **MARTINIQUE PROHASKA** and **PAUL WISOR** (collectively, “Defendants”), by and through undersigned counsel, **SGR, LLC**, hereby submit their Motion to Dismiss Plaintiff’s First Amended Complaint, filed May 8, 2026 (“Complaint”), pursuant to C.R.C.P. 12b(5), and in support thereof, state as follows:

I. CERTIFICATE OF CONFERRAL

Undersigned counsel conferred with counsel for Plaintiff who oppose this Motion.

II. INTRODUCTION

On February 24, 2026, Plaintiff filed its initial Complaint. On April 17, 2026, Defendants filed a joint motion to dismiss the initial Complaint. On May 8, 2026, Plaintiff filed its First Amended Complaint. The First Amended Complaint removes Plaintiff's initial second claim for relief of intentional interference with the 1998 Water Agreement and adds allegations from a December 29, 2025 meeting between the parties in California. As discussed further below, the First Amended Complaint suffers from the same deficiencies as Plaintiff's initial Complaint and should therefore be dismissed in its entirety. Further, because **Exhibit 2 to the Complaint** contradicts allegations material to Plaintiff's claims, the Court need not accept those allegations as true, and they fail to state a plausible claim for relief.

III. STANDARD OF REVIEW

C.R.C.P. 12(b)(5) requires a court to dismiss a complaint that does not state a claim for relief. Specifically, a court properly grants a C.R.C.P. 12(b)(5) motion where the complaint's factual allegations, taken as true and viewed in the light most favorable to the plaintiff, do not present plausible grounds for relief. *Begley v. Ireson*, 399 P.3d 777, 779 (Colo. App. 2017); *Warne v. Hall*, 373 P.3d 588, 595 (2016). Facts couched as legal conclusions, that is, "conclusory statements," are not entitled to the assumption of truth. *Scott v. Scott*, 428 P.3d 626, 632 (Colo. App. 2018); *Warne*, 373 P.3d at 596. Colorado has adopted the "plausibility" standard of *Twombly* and *Iqbal*. Under those standards, "a complaint must contain sufficient factual matter, accepted as true, to 'state a claim for relief that is plausible on its face.'" *Warne*,

373 at 589–91 (Colo. 2016). If it fails to do so, it is subject to dismissal under C.R.C.P. 12(b)(5) for failure to state a claim on which relief may be granted. *Id.* “Bare”, “formulaic”, and “conclusory” allegations are insufficient because they are not entitled to the assumption that they are true. *Id.* “A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” *Ashcroft v. Iqbal*, 556 U.S. 662, 663, (2009). If the alleged conduct is equally consistent with non-tortious conduct, it fails to meet the *Twombly/Iqbal/Warne* standard of “plausibly” stating a claim. *Id.*

IV. ARGUMENT

Plaintiff’s claims against Defendants are not plausibly alleged and therefore fail to state cognizable claims. First, Plaintiff’s tortious interference with prospective business relations claim is not plausibly alleged as Plaintiff has not sufficiently alleged the essential elements of this claim. Most importantly, there are no allegations in the Complaint alleging Defendants did anything to prolong the ski patrol strike or supporting any conclusion the strike would have ended prior to when it did on January 7, 2026, but for some action by Defendants. Nor has Plaintiff plausibly alleged damages resulting from the ski patrol strike. Finally, Plaintiff’s derivative conspiracy claim fails based on the failure of Plaintiff’s substantive claim but also based on the lack of any allegations supporting an agreement, an unlawful overt act, or damages.

A. Claim 1: Tortious interference with prospective business relations is not plausibly alleged (ski patrol strike).

Plaintiff alleges Defendants interfered with its business relations by prolonging the Telluride ski patrol strike from December 27, 2025 - January 7, 2026. Plaintiff offers only the following factual support for this claim:

- Defendant Prohaska represented she had the power to end the strike and by implication prolong it. *See* Complaint, ¶ 29.
- Defendant Prohaska represented she had the power to end the strike via an offer to purchase the ski resort submitted to Plaintiff on December 29, 2025. *See* Complaint, ¶¶ 19, 20, and 78.
- The offer to purchase stated that Buyer [Defendants Fee and Prohaska] will cause the Towns of Mountain Village and Telluride to take commercially reasonable efforts to broker a cessation to the Ski Patrol strike with Patrol agreeing to the offer made by Seller [Plaintiff] to Patrol. *See* Complaint, ¶ 24(a); *see* **Exhibit 1 to Complaint, p. 12** (Exhibit B to Offer to Purchase).
- Defendant Prohaska told Telski owner Chuck Horning if he signed the agreement, ski patrol would go back to work. [Complaint, ¶¶ 12 and 42].
- Defendants deliberately provoked the ski patrol strike to force Mr. Horning to sell Telski. [Complaint, ¶ 45].
- Defendant Wisor drafted a nondisclosure agreement to accompany the purchase offer. *See* Complaint, ¶¶ 63 and 79.

Plaintiff argues these allegations indicate Defendants were taking actions to prolong the ski patrol strike; however, **Exhibit 2 to the Complaint** contradicts these allegations. Contradictory allegations are not well pled and should be disregarded. *Gorsuch, Ltd., B.C. v. Wells Fargo Nat. Bank Ass’n*, 771 F.3d 1230, 1238 (10th Cir. 2014) (“A party may allege it was intended to benefit from a contract, but such allegations do not overcome contradictory statements in the text of a contract attached to their complaint. When a document contradicts a complaint to which it is attached, the document's facts or allegations trump those in the complaint.”); *GFF Corp. v. Associated Wholesale Grocers, Inc.*, 130 F.3d 1381, 1385 (10th Cir. 1997) (“Mere legal conclusions and factual allegations that contradict such a properly considered document are not well-pleaded facts that the court must accept as true.”); *Matney v. Barrick Gold of N. Am.*, 80 F.4th 1136, 1151 (10th Cir. 2023) (“Matney cannot survive a motion to dismiss

merely by pointing to allegations refuted by the documents on which those allegations are based.”).

There are no non-contradictory allegations plausibly alleging Defendants took any action to prolong the ski patrol strike. Indeed, **Exhibit 2 to the Complaint** explains that the agreement would end the ski patrol strike through the following mechanisms (see **Exhibit 2 to Complaint**, p. 35, Marti Prohaska: “I think it solves ski patrol. And I can talk in a little while about how that happens.”):

- **Exhibit 2 to Complaint**, p 36:
 - Marti Prohaska: Ski patrol will sign a one-year agreement with “the last, best, and final offer. And then as soon as the new agreement is effectuated, they can ***begin negotiating*** with the board.” (emphasis added).
 - Meehan Fee: “I would say if this is signed, we would ask them to call for an immediate vote.”
 - Chuck Horning: But I can ask them anyway.
- **Exhibit 2 to Complaint**, pp. 36-37:
 - Meehan Fee: I would say the difference is, if we ask them for that immediate vote and we are able to present to the group of ski patrollers, there would be a different outcome ultimately.
- **Exhibit 2 to Complaint**, pp. 37:
 - Chuck Horning: So we sign this and they go back to work.
 - Marti Prohaska: Correct.
 - Chuck Horning: That would be really helpful to a lot of people in the community.
 - Marti Prohaska: It really would.
 - Meehan Fee: To everybody in the community.
 - Chuck Horning: It affects me emotionally, ***but not financially***. (emphasis added).

- **Exhibit 2 to Complaint**, p. 39: Marti Prohaska:
 - With this investment group there will be fifty million dollars that can go immediately towards the projects that the board determines to be the most pressing.
- **Exhibit 2 to Complaint**, pp. 41-42:
 - Marti Prohaska: That's why having an investment LLC that isn't involved in government but can utilize some of government's expertise is where this works a lot more efficiently so you can move fast like a business.

Exhibit 2 to the Complaint explicitly states the agreement would end the strike through *negotiations* with ski patrol (further supported by **Exhibit 1 to Complaint**, p. 12 offering, “commercially reasonable efforts to broker a cessation to the Ski Patrol strike”) - not because Defendants were taking any action to prolong the strike.

To survive Defendants’ motion to dismiss, Plaintiff must allege “intentional and improper interference preventing formation of a contract.” *Bristol Head Elec. Site Techs., LLC v. Aero Mktg. & Logistics, LLC*, No. 22CA1540, 2024 WL 3791821, at *3 (Colo. App. Feb. 15, 2024). “One may tortiously interfere with a prospective contractual relation by (1) inducing or otherwise causing a third party not to enter into or continue the prospective relation, or (2) preventing the other from acquiring or continuing the prospective relation. Interference with another’s prospective contractual relation is tortious only if there is a reasonable likelihood or reasonable probability that a contract would have resulted.” *Id.* Plaintiff must allege “pecuniary harm resulting from loss of the benefits of the relation.” *Harris Grp., Inc. v. Robinson*, 209 P.3d 1188, 1196 (Colo. App. 2009). Plaintiff has not alleged the following elements:

1. *No improper interference alleged.*

There is not a single act by Defendants alleging interference, let alone improper

interference with the ski patrol strike to prolong it. The alleged interference by Defendants is not supported by any plausible allegations that the ski patrol strike would have ended earlier than January 7, 2026, but for Defendants' alleged actions. Instead, Plaintiff alleges only that Defendant Prohaska offered the Town to undertake reasonable efforts to end the strike - an offer which Plaintiff declined and therefore had no entitlement. *See* Complaint, ¶ 23 ("Telski did not accept the offer."). As to Defendant Wisor, Plaintiff merely alleges he drafted a nondisclosure agreement. There are no allegations that Defendants had any authority or ability to end or prolong the strike, and no allegations they took any steps to do so.

Nor does the Complaint provide sufficient information to allege "improper" interference. Indeed, the determinative factors cannot be assessed given no act or conduct is alleged: (1) the nature of the person's conduct; (2) the person's motive; (3) the interests of the other with which the person's conduct interferes; (4) the interests sought to be advanced by the person; (5) the social interests in protecting the person's freedom of action and others' contractual interests; (6) the proximity or remoteness of the person's conduct to the interference; and (7) the relations between the parties. *W.O. Brisben Companies, Inc. v. Krystkowiak*, 66 P.3d 133, 136 (Colo. App. 2002) (outlining seven factors to determine whether interference is "improper"). Plaintiff's allegation that Defendants acted for "personal gain" is insufficient to satisfy the improper interference requirement. *Id.* at 137 ("The motivation of personal gain, including financial gain ... generally is not enough to satisfy the improper interference requirement."); *see* Complaint, ¶¶ 11 and 68, and 83. Further, while it is alleged that Defendant Prohaska stood to gain personal benefit as result of being a party to the sale, there are no allegations supporting Defendant Wisor stood to gain any personal benefit.

2. *No intentional interference alleged.*

There are no allegations supporting the claim Defendants intended to prolong the strike. Insufficient allegations therefore exist to support the motive element of the above test. Plaintiff's allegation that Defendant Fee stated she could "make a phone call today to get the union ski patrollers back to work the next day" reflects, at most, a belief she could negotiate an end to the strike. See Complaint, ¶ 18. This is consistent with **Exhibit 2 to the Complaint**, pp. 36-42 and paragraph 24(a) which allege only "commercially reasonable efforts to broker a cessation to the Ski Patrol strike." Plaintiff's conclusory allegation that an ability to end the strike is equivalent to an ability and intent to prolong the strike is unsupported. See Complaint, ¶ 29. To the contrary, paragraphs 18 and 24(a) indicate the strike would have continued absent efforts to negotiate its resolution. Nothing in the Complaint supports any intent by Defendants to prolong the strike.

Plaintiff's use of the phrase "by implication" in paragraph 29 represents a conclusory allegation ungrounded in any facts. None of the allegations in the Complaint support the notion Defendants intended to prolong the strike and Plaintiff's "by implication" assertion is legally insufficient. Absent factual allegations supporting intent, claim one fails. *Wasalco, Inc. v. El Paso Cnty.*, 689 P.2d 730, 732 (Colo. App. 1984) (granting summary judgment where claim was supported only by "conclusory but factually unsupported statements" of intentional interference). This is particularly true with respect to Wisor as the Complaint is again devoid of any allegations even suggesting he acted improperly in any way.

3. *Causation is not sufficiently alleged.*

As no interfering act by Defendants is alleged, Plaintiff has not alleged any action prolonged the strike. The Complaint concedes Plaintiff is not aware of whether Defendants even

had the ability to cause the strike to be prolonged. *See* Complaint, ¶ 42 (“Even if these public acts do not fall within the sole discretion of the Defendants, ...”); *see MDM Grp. Assocs., Inc. v. CX Reinsurance Co.*, 165 P.3d 882, 885 (Colo. App. 2007) (reversing judgment previously in favor of plaintiff on intentional inference with prospective business relations claim, in part, for a “lack of any causative relationship between the conduct of CX and the asserted damages”). Here, there is no direct relationship between Defendants and the Plaintiff’s customers and nothing is alleged in the Complaint demonstrating any such causal connection. Rather, the Complaint speculates the alleged intent by Defendants to prolong the strike was designed to impact the Plaintiff’s customers. Yet, multiple logical leaps are required to establish such attenuated causation.

4. *Damages are not plausibly alleged.*

Lastly, Plaintiff has not plausibly alleged damages. *Mem'l Gardens, Inc. v. Olympian Sales & Mgmt. Consultants, Inc.*, 690 P.2d 207, 212 (Colo. 1984) (“The measure of damages in an action for intentional interference with a contract is the loss caused by the breach.”). Plaintiff alleges damages “estimated at several million dollars” as a result of being inoperable. *See* Complaint, ¶¶ 84-87. However, **Exhibit 2 to the Complaint** contradicts this allegation through Mr. Horning’s statement that he was not financially impacted by the ski patrol strike. **Exhibit 2 to Complaint**, p. 37. As such, there are no non-contradictory allegations that Plaintiff suffered any damages. As Plaintiff has not plausibly alleged its first claim, it should be dismissed.

B. Claim 2: Civil conspiracy is not plausibly alleged.¹

In conclusory fashion, Plaintiff alleges Defendants acted in concert to prepare the offer to

¹ As a threshold matter, conspiracy is a derivative claim so if Plaintiff’s first claim is insufficient there is no viable conspiracy claim. *Sterenuch v. Goss*, 266 P.2d 428, 435 (Colo. 2011).

purchase for the purpose of forcing Plaintiff to sell its ski resort. See Complaint, ¶¶ 88-91. To survive Defendants’ motion to dismiss, Plaintiff must allege “(1) two or more persons []; (2) an object to be accomplished; (3) a meeting of the minds on the object or course of action; (4) one or more unlawful overt acts; and (5) damages as the proximate result thereof.” *Walker v. Van Laningham*, 148 P.3d 391, 396 (Colo. App. 2006). Plaintiff has not alleged the following elements:

1. *No allegations supporting an agreement.*

The Complaint merely alleges Defendants coordinated the offer of purchase. There are no allegations supporting Defendants engaged in any plan to prolong the ski patrol strike. As such, the Complaint fails to plausibly allege a meeting of the minds or agreement to engage in the alleged unlawful conduct. See *Rosenblum v. Budd*, 538 P.3d 354, 367, ¶ 52 (Colo. App. 2023) (“we will not infer a conspiracy absent some proof of an agreement.”).

2. *No unlawful overt act.*²

Because Plaintiff has not plausibly alleged its first claim, its conspiracy claim necessarily fails. *Walker*, 148 P.3d at 395 (that neighbors contacted each other to coordinate their complaints and testified at plaintiff’s criminal trial is insufficient to support a civil conspiracy claim given these acts are not unlawful); *Rosenblum*, 538 P.3d at 367, ¶ 51 (“Civil conspiracy is a derivative cause of action. If the acts alleged to constitute the underlying wrong provide no cause of action, then there is no cause of action for the conspiracy itself.”).

² Paragraph 94 alleges a violation of C.R.S. § 24-18-103. Initially, no violation of this statute is alleged in Plaintiff’s substantive claim so alleging it in the derivative conspiracy claim is insufficient. Further, there is no private right of action to enforce the statute; it only allows enforcement by a District Attorney. *Grand Junction Peace Officers' Ass'n v. City of Grand Junction*, 558 P.3d 1021, 1035, ¶ 54 (Colo. App. 2024).

3. *No allegations supporting damages as to claim one.*

As discussed above, Plaintiff has not plausibly alleged damages as to claim one. As such, it cannot form the basis of Plaintiff's conspiracy claim. *Walker*, 148 at 396 (conspiracy claim must be supported by damages).

As Plaintiff has not plausibly alleged its second and final claim, the Complaint should be dismissed in its entirety.

C. Defendants are entitled to an award of attorneys' fees and costs.

Should Defendants' motion to dismiss be granted, they are entitled to an award of their attorneys' fees and costs pursuant to C.R.S. § 13-17-201(1) and request the opportunity to submit an affidavit and accompanying documentation in support of the same. *Smith v. Town of Snowmass Vill.*, 919 P.2d 868, 872 (Colo. App. 1996) (granting attorney's fees to Town where tort action was dismissed pursuant to C.R.C.P. 12(b)); *Duke v. Gunnison Cnty. Sheriff's Off.*, 456 P.3d 38, ¶ 43 (Colo App. 2019) ("Under this section, an award of attorney fees is mandatory when a trial court dismisses an action under C.R.C.P. 12(b)"). Moreover, the Complaint fails to allege the claims here fall within the safe harbor provision of C.R.S. § 13-17-201(2).

WHEREFORE, for the reasons stated herein, Defendants respectfully requests the Court order as follows:

- A. Dismiss Plaintiff's claims against them with prejudice;
- B. Enter judgment against Plaintiff and in favor of Defendants;
- C. Grant Defendants their reasonable attorneys' fees and costs; and
- D. Grant Defendants such other and further relief as the Court deems just and proper.

Respectfully submitted,

SGR, LLC

By: /s/ Tiffany E. Toomey
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Counsel for Defendants Wisor and Prohaska

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 5th day of June, 2026, a true and correct copy of the foregoing **DEFENDANTS PROHASKA AND WISOR'S MOTION TO DISMISS FIRST AMENDED COMPLAINT PURSUANT TO C.R.C.P. 12(b)(5)** was electronically filed with the Court and served upon all counsel of record via Colorado Courts E-Filing system.

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